

GENERAL TERMS & CONDITIONS
of the Business Company Krone Consulting s. r. o. for Use of the xxxx Application

I. INTRODUCTORY PROVISIONS

- 1.1. These General Terms and Conditions apply to
(i) rules for the use of the Operator's application called xxxxx;
(hereinafter referred to as "**Terms and Conditions**" or "**GTC**" or "**General Terms and Conditions**") and determine the mutual rights and obligations that arise in connection with or on the basis of the contractual relationship concluded between **Krone Consulting s. r. o.**, with its registered office at: Mlynské Nivy 5, Bratislava 821 09, Slovak Republic, Company ID No.: 50 248 332, TAX ID No.: 2120266060, VAT ID No.: SK2120266060, registered with the Commercial Register of District Court in Bratislava III, Section: Sro, File No.: 110642/B, acting through: Peter Svoboda, Managing Director of the company (hereinafter referred to as the "**Operator**") and the person of the Organizer; and determine the mutual rights and obligations that arise on the basis of the contractual relationship between the Operator and the person of the Participant who will participate in the Event and who is interested in using the Operator's xxxxx Application at such Event.
- 1.2. Pursuant to the provisions of Section 273 (1) of the Commercial Code, these Terms and Conditions are an integral part of each Agreement between the Operator and the User to be concluded in accordance with these Terms and Conditions. In the event that different terms and conditions have been expressly agreed in the Agreement between the Operator and the User or the exclusion of the application of certain provisions of these Terms and Conditions has been expressly agreed, such different arrangement in the Agreement between the Operator and the User shall prevail. In other cases, these Terms and Conditions shall apply to the mutual rights and obligations of the Operator and the User in the relevant part regarding the use of the xxxxx application.
- 1.3. A person interested in the event will be asked in the xxxxx application to confirm their interest by checking the box provided for this purpose before registering for the event in the application.
- „*I accept the Operator's General Terms and Conditions* that (s)he has read these GTCs, understood their content and accepts them in full
 - „*I give my consent to personal data processing*" that (s)he has become acquainted with the terms and conditions and the personal data processing policy specified in the Operator's Personal Data Processing and Protection Policy, has granted consent to their processing, read them, understood their content, and fully agrees with them.
- The User of the xxxxx App will be prompted before starting to use the xxxxx App or before logging into the xxxxx App for the first time to tick the designated check box
- "*I accept the Operator's General Terms and Conditions* that (s)he has read these GTCs, understood their content and accepts them in full.
 - "*I give my consent to personal data processing*" that (s)he has become acquainted with the terms and conditions and the personal data processing policy specified in the Operator's Personal Data Processing and Protection

Policy, has granted consent to their processing, read them, understood their content, and fully agrees with them.

These Terms and Conditions are binding on the Parties as follows: for a Event Ticket Holder, at the moment of Confirmation by the Operator of the Purchase Order for the purchase of the Event Ticket, and unless the contrary is proven, the Event Ticket Holder is deemed to have granted his or her consent to these Terms and Conditions of Use: a) by paying the price of the Admission Fee for the Event Ticket or b) in another method that makes the User's consent to these Terms and Conditions of Use clear, whichever moment occurs first. However, entitlement to an Event Ticket arises only upon payment of the Admission Fee.

These Terms and Conditions are binding on the Parties as follows: for the User of the xxxxx application, at the moment of a) each login to the User Account in the xxxxx application; b) for any change of data in the User Account in the xxxxx application; c) in another method that makes the User's consent to these Terms and Conditions of Use clear, whichever moment occurs first.

- 1.4. The Operator is entitled to unilaterally change these Terms and Conditions in the manner and under the conditions specified in these Terms and Conditions.

II. DEFINITIONS OF TERMS AND CONDITIONS

- II.1. For the purposes of the mutual relations between the Operator and the Event Interested Party and between the Operator and the User, as well as for the purposes of these Terms and Conditions, the following terms shall have the following meanings:

- a) "**Copyright Act**" means the Act No. 185/2015 Z. z., the Copyright Act, as amended.
- b) "**xxxxx**" application" or "**xxxxx**" means a mobile application of the Operator, through which the Event Participant can interactively participate in the Event in various forms (e.g., can ask questions or participate in competitions organised by the Event Organiser, etc.)
- c) "**Price of the Service**" has the meaning given in Article IX. of these Terms and Conditions.
- d) "**Commercial Code**" means the Act no. 513/1991, the Commercial Code, as amended.
- e) "**Civil Code**" means the Act no. 40/1964, the Civil Code, as amended.
- f) "**Event**" means expert conferences, symposia, concerts, theatre or other cultural performances and all other events consisting in spending free time at a predetermined date and place.
- g) "**Provider**" or "**Seller**" means the joint name for the Artists and/or the Event Holder(s) organising the Event.
- h) "**Order Confirmation**" has the meaning set forth in Clause 3.3. of these Terms and Conditions.
- i) "**Operator's Personal Data Processing and Protection Policy**" means the **Operator's** separate rules for the processing and protection of the Operator's (Controller's) personal data available at **webpage Testing United or webpage Krone**
- j) "**Operator**" has the meaning given to it in Clause 1.1. of these Terms and Conditions.

- k) **"Event Ticket"** or **"E-Ticket"** is a confirmation enabling the User or Event Interested Party to be admitted (usually a single admission) to an Event, for which it was purchased, against a one-time payment . The ticket is valid only for the Event for which it was purchased, it cannot be used to enter another Event. After leaving the venue of the Event, the Ticket becomes invalid, with the exception of a Ticket entitling to re-admission to an Event that takes one or more days. The current prices of Event Tickets and individual Events are published on the Event Holder's website and an Event Ticket may be issued in one of the following forms: online Event Ticket in pdf format . . In the event that there is a different price of an Event Ticket on various websites, the price of the Event Ticket listed in the xxxxx application is deemed to be the purchase price of the Event Ticket.
- l) **„Event Holder"** means a natural person or legal entity (with the exception of the Operator and/or the Event Interested Party and/or the User), i) which is in a contractual relationship with the Operator's company enabling the Operator's company to mediate the sale of Event Tickets and conduct related activities under the Agreement between the Event Holder and the Operator. The Event Holder's identification data including the address provided specifically for each Event. The address of the Event Holder is decisive for the submission of a complaint not covered by the Complaints Procedure set out in these GTCs.
- m) **"User"** means a natural person who uses the xxxxx Application for an Event.
- n) **"User Account"** means a separate user account created by the Operator for the User in the xxxxx Application, based on the data provided by the Event Interested Party in the Order for a particular Event, for which the Interested Party paid the Admission Fee, and has the meaning set out in Article V of these Terms and Conditions.
- o) **"Service"** means the common name for the services provided by the Operator to Users in the xxxxx application, and also has the meaning set out in point 4.6. of these Terms and Conditions.
- p) **"Event Ticket Purchase"** has the meaning given in Article III of these General Terms and Conditions.
- q) **"Site"** is an Internet site of the Operator xxxxx, , through which the Operator provides for purchase and sale of Event Tickets for an Event Interested Party.
- r) **"ADR Act"** means the Act no. 391/2015 Z. z. on Alternative Resolution of Consumer Disputes and on Amendments and Supplements to Certain Acts, as amended.
- s) **"VAT Act"** means the Act No. 222/2004 Z. z. on Value Added Tax, as amended.
- t) **"Electronic Commerce Act"** means the Act No. 22/2004 Z. z. on Electronic Commerce and on Amendments and Supplements to Act No. 128/2002 Z. z. on State Control of the Internal Market in Matters of Consumer Protection and on Amendments and Supplements to Certain Acts, as amended by the Act No. 284/2002 Z. z., as amended.
- u) **"Remote Commerce Act"** means the Act No. 102/2014 Z. z. on Consumer Protection in the Sale of Goods or Provision of Services under a Distance Contract or an Off-Premises Contract and on Amendments and Supplements to Certain Acts, as amended.
- v) **"Event Interested Party"** or **"Buyer"** means a natural person or a legal entity, with the exception of an Event Holder and/or the Operator, who is interested in participating in an Event in person (in the event that it is a natural person) or which is interested in participating in an Event by other persons designated by it (in the event that the Event Interested Party is a legal entity).
- w) **"Consumer Protection Act"** means the Act No. 250/2007 Z. z. on Consumer Protection and on Amendments to Act of the Slovak National Council No. 372/1990 Zb. on Offences, as amended.
- x) **"Agreement between Event Holder and Operator"** means an agreement on the terms and conditions of mediating the sale of Tickets for an Event Holder's Events

and on the performance of related agreed activities, on the basis of which the Operator, as an intermediary, ensures the sale of Tickets for an Event on behalf of the Event Holder and on the basis of which the Operator may provide additional services for the Event at an Event, if such have been agreed between them.

- y) **"Event Participation Agreement"** means an agreement concluded between an Event Holder as a seller and an Event Interested Party as a buyer, on the basis of which the Event Holder will admit the Event Interested Party to participate in the Event in person (or by persons designated by the Event Interested Party), and the Event Interested Party as a buyer agrees to pay the Admission Fee directly to the Event Holder under the terms and conditions set out in these GTCs.. By purchasing a Ticket to an Event, the Event Interested Party becomes a party to a **contract with the Event Holder of the Event**. An Event Participation Agreement is concluded for a definite period of time, until the Event takes place, or any related claims are settled. In addition to these GTCs, the legal relationship between an Event Holder and an Event Interested Party is governed by the general terms and conditions of the Event Holder, if such general terms and conditions are adopted by the Event Holder.

II.2. The interpretation of these Terms and Conditions shall be governed by the following rules:

- II.2.1. References to **articles** and **sections** shall be construed as references to the relevant articles and sections of these Terms and Conditions.
- II.2.2. References to a **legal rule** or **applicable legal rule** shall be construed as references to laws, government regulations, ministerial decrees or other normative legal acts of general application.
- II.2.3. References to **days** are references to calendar days, unless otherwise stated in the Terms and Conditions.
- II.2.4. The terms **in particular** or **including** in these Terms and Conditions means "in particular, but not limited to" (whether or not expressly stated using this formulation) and shall not be construed to limit the possibilities solely to the items enumerated.
- II.2.5. The terms defined in these Terms and Conditions in **plural** have the same meaning in the singular, and vice versa.
- II.2.6. **Headings** in these Terms and Conditions are used for clarity and better navigation only and shall be without prejudice to the interpretation of these Terms and Conditions.

III. xxxxx APPLICATION TERMS OF USE

- III.1. The condition for the provision of the Operator's Service through the xxxxx Application to the User is the conclusion of a Service Provision Agreement between the Operator and the User of the xxxxx Application.
- III.2. The Operator shall deliver to the User to the e-mail address specified by the Event Applicant an email with a login name and password, through which the User logs into the User Account that is created by the Operator for the User in connection with participation in a particular Event.
- III.3. Delivery of the e-mail to the e-mail address specified by the Event Interested Party with the login name and password by the Operator to the Event Interested Party is

a binding proposal of the Operator to conclude a Service Provision Contract for the User in accordance with the provisions of Section 43a of the Civil Code.

- III.4. A Service Provision Agreement is concluded at the moment of logging in to the xxxxx Application by the User under the conditions set out in these Terms and Conditions or at the moment the User accepts these GTCs, whichever occurs first.
- III.5. Accepting these Terms and Conditions by clicking on the check box for the xxxxx Application is a binding confirmation of the Operator's proposal to conclude the Service Provision Agreement.
- III.6. The subject of the Service Provision Agreement is, within the scope and under the conditions specified in these Terms and Conditions, the Operator's obligation to provide the User with the Service of using the xxxxx Application, in which the Operator will create for the User the following options, in particular (i) interactive participation of the Participant in an Event, in which the Participant participates (e.g. the Participant may participate in competitions/challenges organised by the Event Holder at the Event, etc.) (ii) or other functionalities enabled for the User by the xxxxx Application.
- III.7. The User agrees to the use of remote means of communication when concluding the Service Provision Agreement. The costs incurred by the User when using means of distance communication in connection with the conclusion of the Service Provision Agreement or its performance (in particular, the costs of Internet connection, costs of SMS, e-mails and/or telephone calls) shall be borne and paid by the User, with the costs of SMS and/or telephone calls do not differ from normal rates.
- III.8. A Service Provision Agreement is concluded for **a /indefinite period.**
- III.9. By concluding a Service Provision Agreement, the User expressly gives consent to the commencement of the provision of a Service immediately after the conclusion of the Service Provision Agreement, i.e., before the expiry of the period to withdraw from the Service Provision Agreement. The Operator hereby informs the User that by giving consent to the commencement of the provision of the Service before the expiry of the period to withdraw from the Service Provision Agreement under the first sentence, the User loses the right to withdraw from the Service Provision Agreement after the Service is rendered in full.
- III.10. The Parties shall be obliged to provide each other with all cooperation necessary for the proper and timely performance of the obligations arising from the Service Provision Agreement (including these Terms and Conditions).

IV. USER ACCOUNT

- IV.1. Access to the User Account in the xxxxx Application shall be granted by the Operator to the User no later than on the day of the Event for which the User has purchased a Ticket, under the terms and conditions set out in these GTCs. After a User logs in to a User Account, the xxxxx Application allows Users to use all the functions of the xxxxx Application.
- IV.2. Before the first login to the User Account, the User shall confirm by clicking on the check box that (i) (s)he has become acquainted with the terms and conditions

for the processing of the User's personal data specified in the Personal Data Processing and Protection Policy and granted consent to their processing, (ii) (s)he expressly grants consent to the commencement of the provision of the Service immediately after the conclusion of the Service Provision Agreement, i.e., before the expiry of the period to withdraw from the Service Agreement, and loses the right to withdraw from the Service Agreement after the full provision of the Service, (iii) (s)he has become acquainted with the current wording of the Terms and Conditions that are binding for him or her, and (iv) (s)he has become acquainted with the Complaints Procedure published by the Operator, if such have been adopted. It is not possible to log in to the User's account for the first time and use the Operator's Services provided through the xxxxx Application without confirming the facts according to the previous sentence.

- IV.3. The User acknowledges that the Operator will send all information related to the User in the User Account, as well as all information related to the Service Provision Agreement and the Terms and Conditions to the User's e-mail address entered in the electronic registration form when logging into the User Account for the first time.
- IV.4. It is the User's responsibility to ensure that the data filled in by the User or the Event Interested Party in the electronic registration form as well as the data in the User Account is correct, true, up-to-date, complete, and not misleading. The User may change, edit and update his/her login and personal data at any time after logging into his/her User Account.
- IV.5. The User may access his/her User Account at any time if (s)he has an Internet connection, which (s)he must arrange at his/her own expense.
- IV.6. The User shall be obliged to (i) protect his/her login data for logging into the User Account against unauthorised disclosure to a third party, theft, loss, or misuse, (ii) protect the security of information systems when logging in to and using the User Account, i.e. , to log in to the User Account only through secure servers and secure networks (not through public computers and public networks), choose more complicated login passwords and change them regularly, to not record login data and passwords on publicly available media and in a way that could lead to its disclosure, theft, disclosure, or misuse, (iii) notify the Operator without undue delay of any misuse, loss, disclosure or theft of login data for the User Account or unauthorised access to the User Account by a third party.
- IV.7. The User acknowledges that the Operator is not liable for and does not guarantee continuous (24/7) operation, functionality and availability of the User Account. The unavailability or non-functionality of the User Account may be caused mainly by mandatory maintenance conducted by the Operator, an outage on the part of the network providers, or by other objective circumstances beyond the scope of the Operator's liability. In such a case, the Operator is not liable to the User for damage suffered due to unavailability or non-functionality of the User Account.
- IV.8. The User acknowledges that the Operator may cancel or block the User's User Account in the event that the User has seriously or repeatedly violated the terms and conditions or rules of use of the User Account specified in the Service Provision Agreement or in these Terms and Conditions or an applicable legal rule, or where there is another serious reason for doing so.

V. OPERATOR'S RIGHTS AND OBLIGATIONS

- V.1. The Operator shall be obliged to provide Users with a Service to the agreed extent and under the conditions specified in these Terms and Conditions.
- V.2. In connection with the operation of the xxxxx Application, the Operator manages a database of Users. In this regard, the Operator shall in particular store, manage and archive all data and information, to which it has gained access during the use of the xxxxx Application.

- V.3. The Operator provides the xxxxx Application "as is", and all and any risks associated with the use of the xxxxx Application shall be borne solely by the User or the Event Interested Party. The Operator shall not be liable for any damages suffered by Users or Event Interested Persons or any third parties directly, indirectly or incidentally as a result of or in connection with the use of the xxxxx Application.
- V.4. The Operator is entitled to monitor and store all information on the use of the xxxxx Application, on the basis of which it will be possible to unambiguously identify the User Account.
- V.5. The Operator reserves the right to remove any part of the xxxxx Application at any time, even without the consent of the User, in particular any User Account that is contrary to the law of the Slovak Republic, good manners or otherwise constitutes a danger to public order, or its content does not correspond to the principles or legitimate interests of the Operator. This includes, in particular, such content that is misleading or untrue, bears characteristics of a spam, or has no connection with the focus of an Event the xxxxx Application, or that shows signs of discrimination against any person or group of persons or other generally condemnable conduct or attitudes.

VI. USER'S RIGHTS AND OBLIGATIONS

- VI.1. In addition to the rights and obligations under the Service Provision Agreement, these Terms and Conditions or applicable rules, the User has, in particular, the right to use all the features and functions of the xxxxx Application, primarily to use any option offered by the Operator through the xxxxx Application, primarily under the conditions and in the manner permitted by the Service Provision Agreement and these Terms and Conditions.
- VI.2. The User is not entitled to use the Operator's Services for any purposes that would conflict with the Service Provision Agreement, these Terms and Conditions, or any applicable legal rules.
- VI.3. In particular, the User shall not be entitled to interfere in any way with the content or technical parameters of the xxxxx Application, interfere with the security of the xxxxx Application, and prevent other Users from fully using the xxxxx Application.
- VI.4. The User shall be liable for any damage or injury caused by an unauthorised use of the xxxxx Application and/or interference with the xxxxx Application and its components (including the source code).
- VI.5. The xxxxx Application are a copyright work of the Operator and are protected primarily by the Copyright Act and other applicable legal rules. The User acknowledges that all rights and titles to the xxxxx Application, in particular, copyright to the content, page layout, photos, videos, graphics, trademarks, logos, and other content and elements belong to the Operator. It is forbidden to copy, modify or otherwise use and interfere with the Site or a part thereof without the consent of the Operator. At the same time, the User may not obtain or attempt to obtain in any way any materials or information related to the Site and/or the xxxxx Application and/or the Operator's Services that are not (have not been) made publicly available or provided through the Site and/or the xxxxx Application. User is granted a non-transferable, non-exclusive license to use the Services and the xxxxx Application, subject to any restrictions imposed by these Terms and applicable law. Operator retains all rights to the Services and the xxxxx Application not expressly granted to User, which User agrees to.

VII. PRICE OF SERVICE(S) FOR USING THE xxxxx APPLICATION

VII.1. The price of a Service consists of the Operator's fee for the provision of the Service to the User, and the Operator provides the User with the Service under these GTCs **free of charge**, unless the User and the Operator expressly agree otherwise for a particular Event.

VIII. RIGHTS IN RESPECT OF DEFECTS IN SERVICES RENDERED (COMPLAINT)

VIII.1. The Operator Shall be liable to the User for ensuring that a Service rendered by the Operator complies with the requirements for the quality of the Service offered that corresponds to the nature of the Service rendered.

VIII.2. The Operator shall be liable for any defects that a Service has at the time of its provision to the User, unless otherwise expressly stated in the Service Provision Agreement or these Terms and Conditions. The Operator shall be liable for any defects in a Service that occur after the time specified in the first sentence if such defects have been caused by a breach of its obligations under the Service Provision Agreement or under legal rules of general application.

IX. WITHDRAWAL FROM SERVICE PROVISION AGREEMENT

IX.1. In addition to the reasons set out in the relevant provisions of these Terms and Conditions or the applicable legal rules (e.g., Section 517 of the Civil Code, Section 575 of the Civil Code, Section 18 (4) of the Consumer Protection Act, etc.), the User who has concluded a Service Provision Agreement outside their business activity as a consumer has the right to withdraw from the Service Provision Agreement under this Article of the Terms and Conditions, too.

IX.2. If a Service Provision Agreement is concluded remotely (via the Site) or outside the Operator's premises, and, at the same time, if the Operator has provided the User in a timely and proper manner with information on the right to withdraw from the Service Provision Agreement, the terms and conditions, the time limit and the procedure for exercising the right to withdraw from the Service Provision Agreement, including the withdrawal form for the Service Provision Agreement (in accordance with Section 3 (1) (h) of the Remote Commerce Act) and provided that the legally required conditions are met, then the User shall have the right to withdraw from the Service Provision Agreement without giving a reason under the Remote Commerce Act.

IX.3. The period for withdrawal from a Service Provision Agreement is 14 days from the date of conclusion of the Service Provision Agreement. According to the provisions of Section 7 (6) (a) of the Remote Commerce Act, the User may not withdraw from a contract, the subject of which is the provision of a service, if its provision has begun with the express consent of the User and the User has stated that (s)he has been duly informed that by expressing such consent (s)he loses the right to withdraw from the contract after the full provision of the service and if the service has been fully provided.

IX.4. In order to comply with the deadline for withdrawal from the Service Provision Agreement, the User must send a clear statement expressing his or her desire to withdraw from the Service Provision Agreement, no later than on the last day of the period according to clause 11.3 of this Article of the Terms and Conditions.

- IX.5. In the withdrawal notice in respect to a Service Provision Agreement, the User shall state:
- IX.5.1. identification data of the User (in particular, name, surname, address of permanent residence);
 - IX.5.2. the reasons for withdrawal from the Service Provision Agreement and a reference to the relevant provision of the Terms and Conditions or a legal rule establishing the User's right to withdraw from the Service Provision Agreement; this shall not be applied if the User withdraws within the period pursuant to Section 7 et seq. of the Remote Commerce Act without giving a reason.
- IX.5.3. The User may at any time send the Operator a request for deletion of his User Account, which shall be equivalent to withdrawal from further provision of the Services by the Operator. The Operator shall delete the User Account without delay, and no later than 14 days after receipt of the User's request. The User may send a request for deletion of the User Account by e-mail from the e-mail address associated with the User Account to the e-mail address of the Operator specified in these Terms of Service. A request to delete a User Account may be made through the xxxxx Application by selecting the appropriate option in the Application's settings menu, if such option is provided by the xxxxx Application. After confirming the request to delete the xxxxx Application, the User will be redirected to the main page of the Application. Deleting the xxxxx Application from the User's device will not delete the User's account.
- IX.6. To withdraw from a Service Provision Agreement, the User may use the withdrawal form concerning the Service Provision Agreement, available on the Site. A notice of withdrawal from a Service Provision Agreement shall be sent by the User to the e-mail address or postal address of the Operator specified in these Terms and Conditions. The Operator shall confirm for the User the acceptance of a notice of withdrawal from a Service Provision Agreement immediately after its receipt by the Operator.
- IX.7. Where the User withdraws from a Service Provision Agreement, the Operator shall refund the User the Operator's fee for the provision of the Service immediately, no later than seven (7) days from the receipt of the withdrawal notice, to the bank account (or payment card) used to pay the Price of the Service (depending on the relevant bank of the User) or using the method requested by the User in the withdrawal notice. The Operator draws the User's attention to the fact that if the User withdraws from the Service Provision Agreement and has given express consent before the commencement of the Service provision to the Operator to start providing the Service immediately after the conclusion of the Service Provision Agreement, then the User shall be obliged to pay the Operator the price for the actually provided performance by the date of receipt of the notice of withdrawal from the Service Provision Agreement by the Operator. For the avoidance of any doubt, the use of a Service on the basis of confirmation of the User's Order by the Operator shall be deemed to be a performance provided under the Service Provision Agreement and these Terms and Conditions..
- IX.8. The Operator has the right to withdraw from a Service Provision Agreement and to cancel/block the User's access to the xxxxx Application, in the following cases, in particular:
- IX.8.1. in the case that the User has materially or repeatedly violated the terms and conditions or rules of use of the xxxxx Application set out in the Service

Provision Agreement or in these Terms or the applicable legal rules, or if there is another compelling reason for doing so;

IX.8.2. in the case that the User violates the copyright of the Operator and/or an Event Holder and/or causes harm to the reputation of the Operator or an Event Holder;

IX.8.3. in the case that the User allows unauthorised access to the User's User Account by a third party;

IX.8.4. as specified in the Civil Code (e.g., Section 575 – impossibility of performance, § 517 “ default of the debtor, etc.) or any applicable legal rules.

IX.9. A notice of withdrawal from the Service Provision Agreement shall be sent by the Operator to the User in the form of an e-mail message to the User's e-mail address specified in the Order or when logging into the User Account for the first time.

IX.10. In the withdrawal notice in respect to a Service Provision Agreement, the Operator shall state:

IX.10.1. identification data of the Operator;

IX.10.2. the reasons for withdrawal from the Service Provision Agreement and a reference to the relevant provision of the Terms and Conditions or a legal rule establishing the Operator's right to withdraw from the Service Provision Agreement.

IX.11. The Operator is also entitled to withdraw from the Service Provision Agreement due to the fact that an Event Holder selected by the User cancelled the User's Order due to unavailability of an Event at a requested time or place, for any other reason, or without giving a reason. The Operator shall immediately inform the User thereof via the e-mail address specified in the Order or when logging into the User Account for the first time.

IX.12. If the Operator withdraws from the Service Provision Agreement, then it shall refund to the User without delay, but no later than seven (7) days from the receipt of the notice of withdrawal from the Service Provision Agreement, all funds received from the User under the Service Provision Agreement, to the bank account (or payment card) used by the User to pay the Price of the Service (depending on the relevant bank of the User) or using the method requested by the User; this is without prejudice to the provisions of the second and third sentences in clause 11.7 of this Article of the Terms and Conditions.

IX.13. In the event that any circumstances preceding the conclusion of the Service Provision Agreement change, after the conclusion of the Service Provision Agreement, to such an extent that the performance becomes more difficult for the Operator, especially in the event of increased Operator's costs of the performance, the Operator has the right to demand from the User the resumption of negotiations on the Service Provision Agreement, unless (i) the Operator could not reasonably foresee or rule out such a change and (ii) the change occurred only after the conclusion of the Service Provision Agreement or became known to the Operator only after the conclusion of the Service Provision Agreement. In such a case, the Operator is entitled to postpone the performance for a reasonable period of time. If the Parties fail to agree within a reasonable time on an amendment to a Service Provision Agreement that restores the balance of the rights and obligations of the Parties, either Party shall have the right to withdraw from the Service Provision Agreement.

X. PERSONAL DATA AND ITS PROTECTION

- X.1. The Operator processes the User's personal data as a data subject in accordance with Act No. 18/2018 Z. z. on the Protection of Personal Data and on Amendments and Supplements to Certain Acts, as amended, and pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).
- X.2. More detailed information on the protection of the User's personal data is provided in the Personal Data Processing and Protection Rules posted on the Operator's website.

XI. MARKETING CONSENT

- XI.1. The Operator informs the User that pursuant to Section 62 (3) of the Act No. 351/2011 Z. z. on Electronic Communications, as amended, it may reach out to the User with calls, e-mails and SMS messages using the contact addresses provided during registration for the purposes of direct marketing of its own similar goods and services. A call, an e-mail or an SMS message referred to in the previous sentence may be of an informational or advertising nature and originated by the Operator. The operator informs the user that it may use content, photos, videos, and written records from the application for the operator's marketing purposes. The operator processes personal data for the duration of the contractual relationship. The Operator shall process personal data for the duration of the contractual relationship. The User may at any time notify the Operator of any disagreement with calling, sending of these e-mails or SMS messages using the contact form (or other contact details if specified in the Service Provision Agreement or these Terms and Conditions) or by simply unsubscribing each time an e-mail message is delivered by clicking the link at the end of the e-mail message.

XII. LIABILITY OF THE PARTIES

- XII.1. The Parties agree to make every effort to prevent damage or loss and to minimise any damage or loss that has occurred.
- XII.2. The Parties shall be liable for damage done to the other Party due to a breach and/or failure to comply with the Service Provision Agreement and/or these Terms and Conditions, or by failure to act under the Service Provision Agreement and/or these Terms and Conditions. The liability of the Parties for damage and compensation for damage shall be governed by the relevant provisions of the Civil Code, unless otherwise specified below.

XIII. DISPUTE RESOLUTION

- XIII.1. The Parties hereby agree to make every effort to settle all an any disputes arising from the Service Provision Agreement and/or these Terms and Conditions and/or in connection with them in an amicable manner.
- XIII.2. If a User who has the status of a consumer is not satisfied with the manner the Operator has handled their complaint, or if the User believes that their rights have been violated, then the User shall have the opportunity to contact the Operator with

a request for rectification by e-mail: [to be completed - ak by sme mali v app info email - mali by sme mat'] or in writing to the address of the Operator's registered office. In the event that the Operator responds to the request for rectification with a refusal or in the event that it does not respond to such a request within thirty (30) days of the date it is sent by the User, the User who is a consumer has the right to seek protection of their consumer rights by means of alternative dispute resolution by a body in accordance with the ADR Act. During the alternative dispute resolution, the User – consumer cooperates with the alternative dispute resolution body in order to quickly resolve the dispute.

- XIII.3. A proposal to initiate an alternative dispute resolution may be filed in the manner determined pursuant to Section 12 of the ADR Act. The User may also use a form to submit such a proposal, a model of which is also available on the websites of the Ministry of Economy of the Slovak Republic and of each alternative dispute resolution body. This is without prejudice to the option to take the same matter to court.
- XIII.4. The body for alternative dispute resolution is the Slovak Trade Inspection, or another relevant authorized legal entity registered in the list of alternative dispute resolution bodies maintained by the Ministry of Economy of the Slovak Republic ([https://www.mhsr.sk/obchod/ochrana"spotrebitela/alternativne"riesenie"spotrebitelskych"sporov"1/zoznam"subjektov"alternativneho"riesenia"spotrebitelskych"s porov"1](https://www.mhsr.sk/obchod/ochrana%20spotrebitela/alternativne%20riesenie%20spotrebitelskych%20sporov%201/zoznam%20subjektov%20alternativneho%20riesenia%20spotrebitelskych%20sporov%201)).
- XIII.5. The User, who is a consumer, shall have the right to choose an alternative dispute resolution body to contact. In the event of a cross-border dispute, the User as a consumer has the right to contact the European Consumer Centre, which will provide them with an address for service, an electronic address or a telephone contact of an alternative dispute resolution body competent to resolve their dispute.
- XIII.6. The address for filing submissions in electronic form with the Slovak Trade Inspectorate of is the Inspectorate of the Slovak Trade Inspection for the Bratislava Region, Bajkalská 21/A, P. O. BOX No. 5, 820 07 Bratislava, Department of Supervision, e-mail: ba@soi.sk, and for alternative dispute resolution of consumer disputes: Slovak Trade Inspection, Bajkalská 21/A, 827 99 Bratislava 27, e-mail: ars@soi.sk, website address: <https://www.soi.sk/>.
- XIII.7. The European Consumer Centre Slovak Republic, with its registered office at Mlynské Nivy 44/A 827 15, Bratislava 212 Slovak Republic Tel.: +421 905 528 477, e-mail: [ECCNET"SK@ec.europa.eu](mailto:ECCNET) is the contact point under Regulation (EU) No 524/2013 of the European Parliament and of the Council of 21 May 2013 on online dispute resolution for consumer disputes and amending Regulation (EC) No 2006/2004 and Directive 2009/22/EC (Regulation on consumer online dispute resolution). An online platform set up by the European Commission at <http://ec.europa.eu/consumers/odr/> can also be used to lodge a complaint about the services provided by the Operator and to search for an alternative dispute resolution body.

XIV. CONCLUDING PROVISIONS

- XIV.1. The law of the Slovak Republic shall apply to these Terms and Conditions. The courts of the Slovak Republic shall have authority over any disputes arising under or in connection with these Terms and Conditions, and Users who are consumers may also sue the Operator in the courts of the Member State of the European Union, in which the consumer resides.
- XIV.2. If any provision(s) of these Terms and Conditions becomes ineffective or invalid, this shall not affect the force and effect of the other provisions of these Terms and Conditions, unless the provisions in question are inseparable from each other. In such a case, the User and the Operator agree to replace the ineffective provision with an effective provision and the invalid provision with a valid provision, so that

it best corresponds to the previously intended content and purpose of the ineffective and/or invalid provision. Until replaced under the preceding sentence of these Terms and Conditions, the applicable legal rule of generally binding legal rules shall apply.

- XIV.3. The Terms and Conditions apply to the contractual relationship between the User and the Operator in the wording specified in the xxxxx Application on the day of placing the Order or on the day of the first login to the User Account, or on the day of placing an Order, unless otherwise agreed in writing between the Parties. The Operator shall send a valid and effective version of the Terms and Conditions in the .pdf electronic format, which the User had the opportunity to read in the xxxxx application and which the User accepted when first logging into the User Account or when placing the Order.
- XIV.4. The Operator reserves the right to amend these Terms and Conditions. The obligation to notify of any changes to these Terms and Conditions in writing is fulfilled by placing such a notification in the xxxxx application, and the amended Terms and Conditions shall not apply to any legal relationships created before the publication of the amended version of the Terms and Conditions in the xxxxx Application.
- XIV.5. The Operator has the right to change, upgrade and otherwise modify the Services provided through the Site without prior notice to the Users or Event Interested Parties, and without their consent.
- XIV.6. The Operator is not bound by any codes of conduct in relation to the User or an Event Interested Party within the meaning of Section 3 (1) (n) of the Act on Consumer Protection in the Sale of Goods or Provision of Services under a Distance Contract.
- XIV.7. In the event that a Service Provision Agreement is concluded in writing, any amendment thereto must be made in writing.
- XIV.8. The Parties agree that communication between them shall be conducted by electronic mail. The User shall deliver correspondence to the Operator to the e-mail address specified in these Terms and Conditions. The Operator shall deliver correspondence to the User to the e-mail address specified in the Order.
- XIV.9. Any relationships not governed by these Terms and Conditions are subject to the relevant provisions of the Civil Code, the Commercial Code, the Consumer Protection Act, the Act on Consumer Protection in the Sale of Goods or Provision of Services under a Distance Contract, the Electronic Commerce Act, and other applicable legal rules. If the Party is not a consumer, and a Service is to be provided for business purposes, the contractual relationships not expressly governed by these Terms and Conditions shall be regulated by the provisions of the Commercial Code.
- XIV.10. These General Terms and Conditions shall enter into force on [xxxxx web page].